

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: StaceyAnn McFarlane-Ross	Team: Squad #10	CCRB Case #: 201803825	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/15/2018 12:20 PM	Location of Incident: Intersection of Faber Street and Grove Avenue	18 Mo. SOL 11/15/2019	Precinct: 121		
Date/Time CV Reported Tue, 05/15/2018 12:51 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/15/2018 12:51 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Lance Sigman	5055	937538	121 PCT
2. POM Anthony Rubilotta	01076	957112	121 PCT
3. POM Nicholas Tingos	03597	955580	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Tingos	Abuse: Police Officer Nicholas Tingos stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Anthony Rubilotta	Abuse: Police Officer Anthony Rubilotta stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . SGT Lance Sigman	Abuse: Sergeant Lance Sigman stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unsubstantiated
D . SGT Lance Sigman	Abuse: Sergeant Lance Sigman recorded § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 15, 2018, § 87(2)(b) filed this complaint on behalf of herself, § 87(2)(b) and § 87(2)(b) via telephone with the CCRB.

On May 15, 2018, § 87(2)(b) and § 87(2)(b) were passengers in § 87(2)(b)'s white 2003 Altima sedan which was being driven by § 87(2)(b) § 87(2)(b) who was the front passenger and § 87(2)(b) who was the rear passenger, observed an unmarked gray Ford with flashing lights and siren behind the car. § 87(2)(b) immediately stopped the car at the intersection of Grove Avenue and Faber Street, in Staten Island. PO Nicholas Tingos, Sgt. Lance Sigman and PO Anthony Rubilotta, from the 121st Precinct, approached the car (**Allegations A, B, and C: Abuse of Authority, Unsubstantiated**). PO Tingos approached § 87(2)(b) on the driver's side while Sgt. Sigman and PO Rubilotta approached the passenger side of the car. Within two minutes of the car stop, § 87(2)(b) began to record the incident and Sgt. Sigman also took out his cell phone and recorded her while saying, "You're going to record. I'm going to record" (**Allegation D: Abuse of Authority, Unsubstantiated**).

PO Tingos informed § 87(2)(b) that she should slow down at a stop sign and asked her for her driver's license, registration and insurance card. § 87(2)(b) provided the documents and PO Tingos, Sgt. Sigman and PO Rubilotta returned to the police car. Approximately five minutes later, PO Tingos, Sgt. Sigman and PO Rubilotta returned to § 87(2)(b)'s car and PO Tingos issued § 87(2)(b) a warning. § 87(2)(b) was free to leave the scene without being issued a summons.

The investigation was unable to obtain video footage of this incident as § 87(2)(b) did not cooperate with the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Nicholas Tingos stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Anthony Rubilotta stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Sergeant Lance Sigman stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) (BR 01, 02) and § 87(2)(b) (BR 03) both testified once § 87(2)(b) stopped the car, PO Tingos approached § 87(2)(b) on the driver's side while Sgt. Sigman and PO Rubilotta approached the passenger side of the car. They heard PO Tingos say to § 87(2)(b) "You need to slow down at a stop sign." § 87(2)(b) and § 87(2)(b) asked PO Tingos the reason for the stop and he responded, "I'm going to give you a summons for not slowing down and stopping at the stop sign." § 87(2)(b) informed PO Tingos that they did not pass a stop sign. PO Tingos asked § 87(2)(b) for her driver's license, registration and insurance, and § 87(2)(b) complied. To § 87(2)(b) and § 87(2)(b)'s knowledge, § 87(2)(b) did not commit any traffic infractions. In a follow up call on August 15, 2018, § 87(2)(b) described her car rear windows are tinted and are legal for New York City.

The investigator was unable to obtain a sworn statement from § 87(2)(b) despite many contact attempts as well as obtain the video footage of the incident which was in her possession (BR 15).

PO Tingos (BR 06) testified that as he drove on Faber Street, he observed a car with tinted windows drive through a stop sign at the intersection of Grove Avenue and Faber Street. PO Tingos initiated the stop. After he approached the driver's side of the car, PO Tingos explained to § 87(2)(b) that the car had been stopped due to the tinted windows and failing to stop at a stop sign. PO Tingos asked for her driver's license and registration. § 87(2)(b) complied and provided the documents. PO Tingos, Sgt. Sigman and PO Rubilotta then returned to the police car and checked § 87(2)(b)'s driver's license. It was discovered that § 87(2)(b)'s insurance was expired, however her driver's license was valid. PO Tingos used his discretion not to issue § 87(2)(b) a summons, and issued her a warning.

Sgt. Sigman (BR 04) testified that as he sat in the front passenger seat he observed a white car with excessive tints drive through a stop sign on Grove Avenue. PO Tingos initiated the stop and approached the driver's side while he and PO Rubilotta approached the passenger side. Although he was unable to hear the conversation between PO Tingos and § 87(2)(b) he assumed PO Tingos explained the reason for the stop and asked for § 87(2)(b)'s driver's license. Sgt. Sigman stated § 87(2)(b) was not issued a summons because they used their discretion.

PO Rubilotta (BR 05) testified that as the rear passenger he did not pay attention to his surrounding and did not make any observations of § 87(2)(b)'s car before PO Tingos initiated the turrett lights. Once § 87(2)(b) stopped the car, PO Tingos informed him that he stopped the car for tinted windows. After PO Tingos obtained § 87(2)(b)'s driver's license and checked it, he made the decision not to issue § 87(2)(b) a summons and she was free to leave the scene with a warning. PO Rubilotta noted if § 87(2)(b) did not open the rear window, he would not have known there was a third occupant. However, the tinted windows were not checked with a tint meter.

According to the NYS Vehicle and Traffic Laws, Title 3, Article 9, Section 375, a vehicle that is covered with or treated with any material which has a light transmittance should be less than 70% (BR 11).

§ 87(2)(g)

It is therefore recommended that **Allegations A, B and C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: Sergeant Lance Sigman recorded § 87(2)(b)

§ 87(2)(b) was upset about the car stop, took out her cell phone and recorded the incident. At the same time, Sgt. Sigman took out his cell phone, held it up and stated, "You're going to record? I'm going to record".

§ 87(2)(b) testified that § 87(2)(b) began recording the incident and Sgt. Sigman also took out his cell phone and photographed § 87(2)(b).

Sgt. Sigman testified § 87(2)(b) began recording the incident immediately as he, PO Tingos and PO Rubilotta approached the car. He described § 87(2)(b) as screaming at him, however he did not remember any specific statements she made. He acknowledged taking out his NYPD department cell phone, held it up and pretended to record § 87(2)(b) to deescalate the situation.

PO Rubilotta testified § 87(2)(b) began yelling, "Why did you pull us over? This isn't right" and asked for their shield numbers as she recorded them. He observed Sgt. Sigman take out his

department cell phone and pretend to record § 87(2)(b) as he and Sgt. Sigman verbally provided and showed their shields. PO Rubilotta knew Sgt. Sigman did not use his cell phone because it was not turned on.

PO Tingos testified that he did not see or hear anything while standing on the driver's side of the car as he was focused on speaking with § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties of (BR 12, 13, 14).
- PO Nicholas Tingos has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Anthony Rubilotta has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Lance Sigman has been a member-of-service for 13 years and has been a subject in two CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of July 31, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 10).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date